

File No.: EXP202406785

RESOLUTION No.: R/00011/2025

Considering the complaint filed on April 19, 2024, before this Agency by A.A.A., against SMILE2IMPRESS, S.L., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised their right of access against SMILE2IMPRESS, S.L. with NIF B67402032 (hereinafter, the respondent) and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that in May 2022, they began orthodontic treatment at the CLÍNICA IMPRESS in ***LOCALIDAD. On December 19, 2023, they requested via email a detailed medical report in writing that described their clinical status at the time they visited the clinic, the prescribed therapeutic intervention, a detailed report describing their clinical status on that date, and the prescribed intervention from that moment onward. On December 26, they added to the initial request another one asking for all the “scans, photographs, and X-rays that had been taken since the beginning of the treatment until that date.”

In this regard, the complainant informs that throughout the use of the corrective aligners, images are sent with a frequency of almost weekly (at most every 10 or 15 days). After almost two years of treatment, they claim to have received only 9 images. On April 12, 2024, they received a response in which only “a very brief written report and a group of images from the beginning and from the two moments when the treatment was completed and it was necessary to continue” were sent.

On the contrary, they did not receive the scans or other images. They believe that their right of access has been violated, as not all the files related to the dental treatment that they requested have been provided.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised. Among them, the requests for the exercise of the right of access and two responses from the respondent in which it is stated that they would be preparing the requested documentation.

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SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the controllers or processors of the treatment, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity so that it could proceed with its analysis and respond to the complainant and this Agency within one month.

The respondent states that they have delivered the requested documents, which “due to the size of the files, it is difficult to send them all electronically and that our technical team is working on it to send them in an encrypted manner to ensure their security and comply with your request.” They attach an image of an email addressed to the complainant, in which it is indicated that “the requested medical report is attached.” However, neither the report nor any attached documentation is included.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on July 19, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum

period to resolve the present procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days they could present the allegations they deemed appropriate. Although the receipt of the document is duly recorded, the respondent has not made any allegations.

LEGAL GROUNDS

FIRST: The Presidency of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion,

opposition, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered, which incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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The right of access in relation to the medical history is specifically regulated in Article 18 of Law 41/2002, of November 14, the basic regulatory law of Patient Autonomy and Rights and Obligations in the Matter of Information and Clinical Documentation (hereinafter LAP), the literal text of which states: "1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical history and to obtain a copy of the data contained therein. Health

centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical history may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access the confidentiality of their subjective notes.

4. Health centers and individual practitioners will only facilitate access to the medical history of deceased patients to persons linked to them, for family or factual reasons, unless the deceased expressly prohibited it and this is accredited. In any case, access by a third party to the medical history motivated by a risk to their health will be limited to the pertinent data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, will not be provided."

In this regard, it is important to highlight Article 15 of the LAP, which outlines the minimum content of the medical history:

"1. The medical history will include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care fields.

2. The main purpose of the medical history will be to facilitate healthcare, documenting all those data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history will be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Evolution.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room or delivery record.

l) Pathological anatomy report.

m) Nursing care evolution and planning.

n) Therapeutic nursing application.

ñ) Constants chart.

o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical history when it concerns hospitalization processes or as provided.

3. The completion of the medical history, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical history will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process" (the underlining is from the Spanish Agency for Data Protection).

Regarding the preservation of the medical history, Article 17 of the LAP, in its points 1 and 5, states that:

"1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper assistance to the patient during the appropriate time for each case and, at a minimum, five years from the date of discharge from each care process..."

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate.”

FIFTH. In the case analyzed here, the claiming party has exercised their right of access to the medical history before the claimed party by means of a written request sent to them via email. Although the claimed party responded to the request, according to the claiming party, the right was not fully addressed, as not all reports and diagnostic tests carried out during the medical treatment were provided. This circumstance was communicated to the claimed party, and during the processing of this rights procedure, they did not present any allegations, so it cannot be considered that the right was duly attended to.

This does not allow for the understanding that the right of access has been fulfilled under the conditions established both in Article 15 of the GDPR and in Article 15 of the LAP.

For all these reasons, with the documentation present in the procedure, as can be inferred from the allegations made and the documentation provided by the party.

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In the process of transferring the complaint, it is verified that the access granted by the entity being complained about is incomplete.

In light of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the complaint filed by A.A.A. and to urge SMILE2IMPRESS, S.L. with NIF B67402032, to send to the complainant, within ten working days from the date this resolution becomes final and enforceable, a certification that addresses the requested right of access or provides a reasoned denial indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription under Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to SMILE2IMPRESS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1037-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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